

Arun Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 August 2023 · 2023:AHC:158404-DB · Writ - C No. 20600 of 2023 · **Writ disposed as infructuous after supply restored**

HEADNOTE

Writ challenging disconnection disposed of as infructuous. On 10 July 2023 the Court permitted a deposit of Rs.15,000 within three days and recorded counsel's assurance that supply would be restored the same day. By 7 August 2023 the deposit was in and the connection stood restored, so the cause did not survive. Clause 6.5 of the Electricity Supply Code, 2005, mentioned by counsel as the procedure for a disputed bill, was not construed.

FACTUAL SUMMARY

Arun Kumar Singh, a practising advocate, complained that the electricity department had cut supply at his premises although he had been depositing amounts and the meter had been installed only on 3 February 2021. Counsel for the department said the dispute concerned the bill. On 10 July 2023 the Court recorded that he might deposit Rs.15,000 within three days, counsel having assured restoration the same day. His daughter was then under treatment at SGPGIMS. By 7 August 2023 the sum stood deposited and supply had been restored.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

writ infructuous after restoration

HOLDING

Counsel for the department stated that the matter was a disputed bill for which clause 6.5 of the Electricity Supply Code, 2005 provides an exhaustive procedure, and sought time for instructions. The Court did not relegate the petitioner to that remedy or construe the clause. On 10 July 2023 it permitted a deposit of Rs.15,000 within three days toward the dues and recorded counsel's assurance that supply would be restored the same day. On 7 August 2023, that sum having been deposited and the connection restored, the Court held that the cause did not survive and disposed of the writ. ¶ 1-3

PRINCIPLE TAGS

procedural-listing-no-construction No Supply Code clause was construed. Counsel's reference to clause 6.5 was not adopted. Once the petitioner deposited Rs.15,000 and supply was restored, the writ was disposed of because the cause did not survive. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL, JUSTIFICATION FOR THE DISCONNECTION, AND ANY REMEDY UNDER CLAUSE 6.5

Left open. Clause 6.5 was invoked only by counsel on 21 June 2023. The writ was disposed of on 7 August 2023 because the part deposit had been made and supply restored. ¶ 1-3